

Sri Suresh Agarwal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 July 2019 · WRIT - C No. 22693 of 2019 · **Writ dismissed; petitioner relegated to Clause 6.8 objection before EE.**

HEADNOTE

A writ challenging a provisional assessment of electricity charges is not entertained where the consumer has a statutory objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 read with Section 126 of the Electricity Act, 2003 before the Executive Engineer. The petition was dismissed with liberty to avail that remedy and to apply for restoration of supply, to be considered in accordance with law.

FACTUAL SUMMARY

Sri Suresh Agarwal filed a writ petition in the Allahabad High Court challenging a provisional assessment of electricity charges annexed to the petition. The respondents were the State of Uttar Pradesh and two others, appearing through standing counsel and counsel for the distribution licensee. The order does not record the inspection date, the alleged unauthorised use, or the assessed amount. The petitioner also sought restoration of supply, which the Court left to a separate application before the Executive Engineer.

HOLDING-UNITS

INTERPLAY · UP-2005::6.8

provisional assessment — alternative remedy

HOLDING

Against a provisional assessment of electricity charges, the consumer's remedy is an objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 read with Section 126 of the Electricity Act, 2003 before the Executive Engineer. The High Court declined writ jurisdiction in the face of that alternative remedy, dismissed the petition with liberty to pursue it, and directed that any application to the Executive Engineer for restoration of supply be considered in accordance with law. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment A writ challenging a provisional assessment of electricity charges is not entertained where the consumer has a statutory objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 read with Section 126 of the Electricity Act, 2003 before the Executive Engineer.. ¶ 1

s126-procedural-strictness-notice-and-hearing A writ challenging a provisional assessment of electricity charges is not entertained where the consumer has a statutory objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 read with Section 126 of the Electricity Act, 2003 before the Executive Engineer.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT

left to objection under Clause 6.8 read with Section 126 before the Executive Engineer ¶ 1

NOT DECIDED — RESTORATION OF SUPPLY

left to an application to the Executive Engineer to be considered in accordance with law ¶ 1

